

Letter to Andy Slaughter MP — Four Unanswered Submissions

*AC-2025-LON-004293 — Disability Discrimination — CPR 52.8 Deadline
23 April 2026*

Case references

**BV20D01752 | CA-2024-001342 | AC-2025-LON-004293 | BL-2024-001217
| FA-2026-000019
CCR-6501-26-0100-000 | CRN 01/7340002/26 | SEC TCR 17284-760-060-567**

Referred to:

Andy Slaughter MP
Chair, Justice Committee
House of Commons
London SW1A 0AA

Copied to: Rt Hon David Lammy KC MP, Lord Chancellor and Secretary of State for Justice

Nadia Zahmoul

Litigant in Person

13 April 2026

Veritas Numquam Perit

AC-2025-LON-004293 — Disability Discrimination — CPR 52.8 Deadline 23 April 2026 — 13 April 2026

Nadia Zahmoul · Claimant — Litigant in Person · nadia@rosekross.com · 13 April 2026

To: **Andy Slaughter MP** — Chair, Justice Committee, House of Commons, London SW1A 0AA

Copied to: **Rt Hon David Lammy KC MP** — Lord Chancellor and Secretary of State for Justice

RE: AC-2025-LON-004293 — ZAHMOUL V SECRETARY OF STATE FOR JUSTICE & HMCTS — FOUR UNANSWERED SUBMISSIONS | DISABILITY DISCRIMINATION | CPR 52.8 DEADLINE 23 APRIL 2026

Dear Mr Slaughter,

I write to you in your capacity as Chair of the Justice Committee. I am a litigant in person with confirmed NHS diagnoses of Autism Spectrum Condition and Post-Traumatic Stress Disorder. I have conducted four parallel High Court proceedings without legal representation since 2020. Between 16 February and 9 April 2026, I submitted four formal documents to the Justice Committee, each copied to the Lord Chancellor. My submission of 9 April 2026 was lodged as written evidence and expressly required a substantive response. No response has been received from the Committee, from the Lord Chancellor, or from you.

The central ground in my judicial review concerns the unlawful revocation of my participation measures under FPR Part 3A. Those measures were put in place because of my confirmed diagnoses of autism and PTSD. In February 2024, they were revoked without a judicial order, without a hearing, without reasons, and without affording me any opportunity to be heard. HMCTS confirmed in its own correspondence of 14 November 2025 that no judicial order recording the revocation exists.

The law is clear. A court cannot deprive a disabled party of court-ordered participation measures without an order. It cannot do so without a hearing. It cannot do so without reasons. It cannot do so without notice. None of those requirements was met. The resulting void is not a procedural irregularity. It is an unlawful deprivation of the rights of a disabled person protected under the Equality Act 2010 and entitled to the protections of the Public Sector Equality Duty under section 149.

Seven grounds were pleaded in my judicial review. The order of Collins Rice J dated 11 March 2026 does not address a single one. It does not engage with the participation measures ground. It does not engage with disability discrimination. It does not engage with the Equality Act 2010 or the Public Sector Equality Duty. It does not identify a single judicial act governing any of the seven grounds. Ground 7 — the administrative void

ground — is not referred to anywhere in the order. The order characterises the claim as one concerning criminal complaints and enforcement of court orders. Neither characterisation corresponds to any of the seven grounds as pleaded.

The Grounds vs Engagement Table is attached as Annex A. It sets out each ground, the binary question put to the court, and whether the defendant or the court engaged with it. The answer in every row is the same.

The CPR 3.1(7) application identifying this error was filed on 12 March 2026 and has remained unanswered for 32 days. Costs continue to be enforced under the uncorrected order. The CPR 52.8 appeal window closes on 23 April 2026 — **ten days from the date of this letter**.

The order of 11 March 2026 is not constitutionally acceptable. An order that does not engage with the grounds pleaded is not a determination of those grounds. An order that does not address disability discrimination, unlawful revocation of participation measures, or the Equality Act 2010 does not resolve those issues. The claimant is a disabled litigant in person. The matters raised cannot be addressed without proper engagement from the court. The present position — in which a disabled litigant's rights under the Equality Act have been extinguished by an order that does not acknowledge them — is not a lawful outcome.

THE CLAIMANT'S FORMAL POSITION

The Claimant's formal position admits of two and only two acceptable outcomes:

Either the Administrative Court engages with the claim as actually brought — addressing each of the seven grounds as pleaded, including the participation measures ground, the disability discrimination ground, and Ground 7 — and issues a determination that is responsive to the administrative law questions raised;

Or these proceedings are formally stayed to enable the Claimant to instruct a barrister, following which the matter will resume on proper terms.

The Administrative Court has been placed on formal notice of this position. The Justice Committee is now placed on formal notice.

THE SPECIFIC REQUEST

I request that you take one specific step before 23 April 2026.

Write to the Lord Chancellor in your capacity as Chair of the Justice Committee, asking him to provide a written answer to the following question:

> Is it constitutionally acceptable for a judicial review claim — brought by a disabled litigant in person with confirmed diagnoses of autism and PTSD, raising grounds of disability discrimination and the unlawful revocation of court-ordered participation measures — to be certified as Totally Without Merit on the papers, without the order

engaging with the Equality Act 2010, without identifying a single judicial act governing any of the grounds pleaded, and without the order corresponding to the claim as filed?

A question put formally by the Chair of the Justice Committee to the Lord Chancellor requires a written ministerial response. It places the matter on the public record. It is within your power to do this before the deadline.

WHY THIS FALLS WITHIN THE COMMITTEE'S REMIT

The Committee's consideration of this matter is not invited as a matter of convenience. The inequality of arms between a litigant in person and a represented defendant — in a system where paper-only permission decisions may certify complex claims as totally without merit without engaging with disability, equality, or the pleaded grounds — raises structural questions about access to justice that extend well beyond this case. Those questions fall squarely within the Committee's remit.

I remain available to provide any further information the Committee requires.

Yours faithfully,

Nadia Zahmoul

Claimant — Litigant in Person

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Case references: BV20D01752 · CA-2024-001342 · AC-2025-LON-004293 · BL-2024-001217 · FA-2026-000019

Crime references: CCR-6501-26-0100-000 · CRN 01/7340002/26 · SEC TCR 17284-760-060-567

Public archive: github.com/nadiazahmoul/JR-Zahmoul-v-SSJ-HMCTS-Archive

Annex A: Grounds vs Engagement Table (attached)